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Judgment Sheet

IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN

JUDICIAL DEPARTMENT

Crl. Appeal No. 752-J of 2018

(Hassan versus The State)

JUDGMENT

Date of hearing:	29.01.2026
Appellant by:	Prince Rehan Iftikhar Sheikh, Advocate with the appellant
State by:	Mr. Ansar Yasin, Deputy Prosecutor General with Irfan Zakir ASI
Complainant by:	M/s Hafiz Muhammad Habib Ullah Raan and Qaisar Abbas, Advocates for the complainant

MUHAMMAD TARIQ NADEEM. J:- Appellant namely Hassan was tried by the trial court in case FIR No. 193 dated 02.06.2017 registered at Police Station Dera Raheem, District Sahiwal, in respect of an offence under section 376 PPC. After conclusion of trial, the trial court *vide* judgment dated 15.08.2018, convicted the appellant **under section 376(3) PPC** and sentenced him to **imprisonment for life** with fine of **Rs.50,000/-** or in default thereof, to further undergo simple imprisonment for six months with the benefit of section 382-B, Cr.P.C. extended in his favour.

Feeling aggrieved, the appellant has filed the titled appeal against his conviction and sentence.

2. The prosecution story as given in the judgment of the trial court reads as under:-

> *"2. As per prosecution story on 02.06.2017 at near about 12:30 PM the daughter of the complainant Nimra Bibi age about 13/14 Years was present alone at home, as the complainant had gone to purchase house hold articles from Bazar, while her husband and elder daughter gone to work in the maize field. At 12:30 PM when her husband Siddique alongwith her Dewar Shafique and her daughter Missbah returned to home, they found the outer door bolted from inside. In the meanwhile, the complainant also reached there and heard the hue and*

> *cry of Nimra Bibi her daughter. They broken open the door and entered in the house and saw that in the room in front of them, upon a cot, the accused Hassan son of Ashraf was committing rape with her daughter after removing her Shalwar. Her daughter was bleeding and she was crying. In the meanwhile, Hassan accused left her and picked up a knife (Churri) and escaped while waving the knife. The occurrence was reported to the police, hence, the case was got registered."*

3. After completion of investigation, report under section 173 of the Code of Criminal Procedure, 1898, was submitted before the trial court. Upon completing all pre-trial legal formalities, the court framed charge against the appellant, to which he pleaded not guilty and claimed trial. To substantiate its case, the prosecution produced eight witnesses, detail of which has been mentioned in the judgment passed by the trial court, therefore, the same may not be reproduced here to avoid unnecessary repetition. After completion of prosecution evidence, the appellant was examined under section 342 Cr.P.C. during which he denied the allegations and asserted his innocence. After hearing the arguments, the trial court delivered the impugned judgment, convicting and sentencing the appellant as previously detailed.

4. Arguments heard and record perused.

5. I have observed that the occurrence in this case had taken place on 02.06.2017 at about 12:30 p.m. and on the same day at 02:30 p.m. the matter was reported to the police by Farzana Bibi complainant (PW.1) through her oral statement (Exh.PA), on the basis of which formal FIR (Exh.PA/1) was chalked out at 03:10 p.m. This clearly shows that the machinery of law was set into motion within a mere two hours of the incident. It is noteworthy that the appellant is not only named in the promptly lodged crime report (Exh.PA/1) but has also been saddled with the specific allegation of committing rape upon minor victim, Mst. Nimra Bibi (PW.2). Such a swift reporting of incident to the police with all the relevant details leaves no room for consultation or the weaving of a false story. Reliance is placed upon the case-law titled as *"Abdul Ghani v. The State through P.G. Balochistan and another"* **(2022 SCMR 544).**

6. A careful analysis of the record reveals that the prosecution's case against the appellant rests heavily on the ocular account furnished by Farzana Bibi, complainant (PW.1), Mst. Nimra Bibi victim (PW.2) and Misbah Bibi (PW.4). The victim Mst. Nimra Bibi (PW.2) gave a blow-by-blow account of the occurrence which remained unshaken during cross-examination and her version is further fortified by the evidence of Farzana Bibi complainant (PW.1) and Misbah Bibi (PW.4). Since no material contradictions were elicited by the defense, the ocular account stands fully proved. Even otherwise, the law is very clear that in sexual offenses, testimony of the victim, if it is confidence-inspiring, requires no further corroboration to sustain a conviction. Reliance in this regard is placed upon the case-law titled as *"Atif Zareef and others v. The State"* **(PLD 2021 Supreme Court 550),** wherein the Supreme Court of Pakistan has held as under:-

> *"……The courts, therefore, do not insist upon producing direct evidence to corroborate the testimony of the victim if the same is found to be confidence inspiring in the overall particular facts and circumstances of a case, and considers such a testimony of the victim sufficient for conviction of the accused person. A rape victim stands on a higher pedestal than an injured witness, for an injured witness gets the injury on the physical form while the rape victim suffers psychologically and emotionally……"*

7. Adverting to the contention of learned counsel for the appellant regarding the *inter se* relationship of Farzana Bibi complainant (PW.1), Mst. Nimra Bibi victim (PW.2) and Misbah Bibi (PW.4), I am of the considered view that the gravity of allegation leveled in FIR (Exh.PA/1) inherently precludes the hypothesis of false implication or substitution of the appellant on account of personal vendetta. It is a judicially recognized fact that in our conservative society, accusation of *zina* entails a deathless shame which indelibly tarnishes the family's honour. It is highly improbable that the complainant would expose her minor daughter to such a social stigma and the ordeal of a public trial merely to falsely implicate an innocent person. Even otherwise, the defence has failed to bring on record any material suggesting previous enmity, *mala fides*, or specific ulterior motive on the part of the victim or her family which could be

construed as a catalyst for false implication of the appellant in this case. Since the prosecution witnesses remained steadfast on material particulars and the defence failed to shatter their veracity during the crucible of cross-examination, therefore, I feel no hesitation in holding that the ocular account, particularly the confidence-inspiring testimony of Mst. Nimra Bibi victim (PW.2), has successfully brought home the charge against the appellant. Being so, the objection raised by the defence is devoid of force and is hereby turned down.

8. In addition to the above, the testimony of the prosecutrix (PW.2) regarding commission of rape with her by the appellant inspires confidence as it stands substantiated by the medical evidence. Lady Dr. Iqra Khalid (PW.5) conducted the medical examination of the victim on the day of the occurrence at 04:30 p.m. The deposition of medical officer (PW.5) lends credence to the prosecution story by detailing the injuries as infra:-

> ***"Description of Injuries***
>
> *On external and internal examination, labia majora and labia minora are swollen. Clotted blood and fresh blood present around vaginal pubic hairs. She is bleeding.*
>
> *Laceration of 1 x ½ cm present at 6-0 clock position in vaginal cavity. Clots are present in cavity. Cervical laceration noted. Hymen absent. Vagina allows one finger to enter easily and 2-fingers forcefully. The examination was very painful."*

Dr. Iqra Khalid, WMO (PW.5) also took external and internal vaginal swabs along with a piece of "shalwar" for DNA test as well as chemical examination by the Punjab Forensic Science Agency, Lahore, and after receipt of report from the office of Punjab Forensic Science Agency, Lahore, she (PW.5) gave her final opinion in the following words:-

> *"According to PFSA, Lahore report **Ex.PD** and my initial examination Ex.PB, the commission of rape is evident."*

In this way, the ocular account of the prosecution case against the appellant has found unimpeachable fortification through medical evidence, most notably the positive findings contained in the Forensic DNA and Serology Analysis Report (Exh.PD) issued by the Punjab Forensic Science

Agency, Lahore. This scientific corroboration, when viewed in juxtaposition with the clinical findings, leaves no room for doubt that the nexus between the appellant and the commission of the offense has been established to the hilt. Reliance is once again respectfully placed upon the case-law titled as *"Atif Zareef and others v. The State"* **(PLD 2021 Supreme Court 550),** wherein the Supreme Court of Pakistan upheld the conviction and sentences of two convicts of that case while mainly relying on the scientific corroboration by observing as under: -

> *"……The involvement of Sher Baz Khan alias Sheru and Atif Zareef in commission of this offence is corroborated by the DNA test report (Ex-PS), which is considered, due to its scientific accuracy and conclusiveness, as a gold standard to establish the identity of an accused and a very strong corroborative piece of evidence……"*

9. Coming to the defense version, I am mindful of the fact that the appellant, while being examined under Section 342 Cr.P.C. has adopted a stance of stark denial regarding the commission of the offense of rape upon Mst. Nimra Bibi (PW.2). While answering to Question No.10 of his statement under section 342 Cr.P.C. *(Why this case against you and why the PWs have deposed against you?)*, he has stated as infra:-

> *"All the PWs are kith and kin, due to propinquity they have deposed falsely against me as the complainant of the instant case tutored them. The complainant made false story regarding the occurrence, twisted the facts and coloured the real facts then after joining hands with the local police registered the instnt case against me dishonestly and falsely. The real facts are that during the days of registration of the instant case, complainant had got abortion to her daughter. My mother and the mother of the victim quarreled with each other on some petty matter, pertaining to the construction of wall, which was adjacent to my house and the said wall was isolating our house to the house of the complainant. Due to that grudge & venom the complainant after making false story and falling crock-o-deal-tears before the local police and taking false sympathies and joining hands with the I.O and showing herself as an aggrieved lady registered the case in hand. No such occurrence was taken place as the complainant has decorated in the F.I.R and has narrated the story. At the time of registration of the instant case the complainant taking in the confidence of her husband, who has been cited as a witness in the case as eye-witness registered the false case but when the real facts came in the knowledge of the husband of the complainant and her 'Dever' they both*

> *reprimanded to her on her fabrication, on which both of them submitted their sworn affidavits before the police and stated the I.O that the instant case is false case, no such occurrence has taken place in the house of the complainant. The I.O after receiving the above said sworn affidavits of the husband of the complainant and her 'Dever' decorated in the police file and drafted their statements in this regard. The victim was in the state of abortion, in that condition she was got medically examined by the complainant from the concerned hospital where the doctor, who has been become poppet in the hands of the complainant issued MLC on which the formal F.I.R was registered against me. The above said facts came in my knowledge during my trial pertaining to the issuance of MLC from the concerned M.O. Due to our trained relations with the complainant party, our visiting and speaking terms had been ended. On the day of occurrence, I did not visit the house of the complainant nor I committed rape with the victim. I am innocent in this case. On the basis of MLC which had been issued by the lady doctor inclusion with the complainant and false facts narrated by the complainant to the police, the instant case was made against me."*

The defense plea raised by the appellant appears to be a tissue of lies, particularly when viewed in the light of the fact that not a single soul was produced in support thereof. The learned counsel for the appellant, in his characteristic candor, admitted that the defense version remains bereft of any evidence and even the father and paternal uncle of Mst. Nimra Bibi victim (PW.2), who were the supposed harbingers of his innocence, never mounted the rostrum before the trial court. Such a conspicuous absence of evidence renders the defense version a mere moonshine.

On the other hand, the prosecution's case is found to be primarily anchored by a promptly lodged FIR, registered within short span of just two hours of the occurrence, thereby precluding any hypothesis of fabrication or deliberated consultation. As I have discussed above, the minor victim's evidence is entirely probable, natural and trustworthy as she has narrated with lucidity the whole incident about the commission of offence against her by the appellant and there exists no reason, much less compelling reasons, to disbelieve and discard her testimony. Other witnesses namely Farzana Bibi complainant (PW.1) and Misbah Bibi (PW.4) have also been held to be confidence-inspiring and remained unshaken despite a searching cross-examination. Above and beyond, the

ocular version of the prosecution has received ‘gold standard’ fortification from the medical evidence and the positive DNA report (Exh.PD) of the Punjab Forensic Science Agency. It is also not out of place to mention here that when the prosecution’s ocular and medical evidence is kept in juxtaposition with the defense version, the falsity of the latter becomes crystal clear, because, the appellant has failed to substantiate his version with any degree of certainty, leaving the prosecution’s case to stand firm and irrefutably established.

10. A meticulous examination of the record has led this Court to the conclusion that the prosecution has successfully discharged its onus of proving the case against the appellant beyond any shadow of doubt. The statements of prosecution witnesses are consistent on all material points and find ample support from the medical evidence as well as the Forensic DNA and Serology Analysis Report (Exh.PD) of the Punjab Forensic Science Agency, Lahore. In view thereof, the impugned judgment does not suffer from any misreading or non-reading of evidence and the sentence, being already on the lower side, warrants no further indulgence by this Court. Consequently, **Criminal Appeal No. 752-J of 2018** is hereby **dismissed**. The appellant is on bail by way of suspension of sentence, *vide* order dated 11.10.2023, therefore, the said order is recalled and appellant is sent to jail to serve out the remaining portion of his sentence. His sureties shall stand discharged. However, benefit of section 382-B Cr.P.C. is extended to him.

(Muhammad Tariq Nadeem)
Judge

APPROVED FOR REPORTING.

Judge

Signed on 26.01.2026
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